



PRESIDENT
REPUBLIC OF INDONESIA

**LAW OF THE REPUBLIC OF INDONESIA
NUMBER 28 OF 2002
ABOUT
BUILDING CONSTRUCTION**

BY THE GRACE OF GOD ALMIGHTY

PRESIDENT OF THE REPUBLIC OF INDONESIA,

- Considering: a. that national development aims to create a just and prosperous society that is materially and spiritually equitable based on Pancasila and the 1945 Constitution;
- b. that buildings are important as places for humans to carry out their activities to achieve various targets that support the realization of national development goals;
- c. that the building must be organized in accordance with letter b, realized in accordance with its function, and the administrative and technical requirements for the building must be met;
- d. that in order for building construction to be carried out in an orderly manner and realized in accordance with its function, the role of the community and development efforts are required;
- e. that based on the considerations as referred to in letters a, b, c and d above, it is necessary to establish a Law on Buildings;

Remembering: Article 5 paragraph (1) and Article 20 paragraph (1) of the 1945 Constitution as amended by the Fourth Amendment to the Law
1945 Constitution;

With consent
PEOPLE'S REPRESENTATIVE COUNCIL OF THE REPUBLIC OF INDONESIA

DECIDE:

To stipulate: LAW ON BUILDING CONSTRUCTION.

FIG...



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PIG
GENERAL REQUIREMENTS

article 1

- In this law, the following terms are defined as:
1. A building is a physical form resulting from construction work that is integrated with its location, partly or wholly located above and/or in land and/or water, which functions as a place for humans to carry out their activities, whether for housing or residence, religious activities, business activities, social activities, cultural activities, or special activities.
 2. The implementation of building construction is a development activity that includes the technical planning process and construction implementation, as well as utilization, preservation and demolition activities.
 3. Utilization of building structures is the activity of utilizing building structures in accordance with their designated functions, including maintenance, care and periodic inspection activities.
 4. Maintenance is an activity to maintain the reliability of a building and its infrastructure and facilities so that it remains functional.
 5. Maintenance is the activity of repairing and/or replacing parts of a building, components, building materials, and/or infrastructure and facilities so that the building remains functional.
 6. Periodic inspections are activities to check the reliability of all or part of a building, its components, building materials, and/or infrastructure and facilities within a certain time period in order to declare the suitability of the building's function.
 7. Preservation is the activity of caring for, restoring and maintaining buildings and their environment to restore the reliability of the building to its original state or to the condition according to the desired period.
 8. Demolition is the activity of dismantling or demolishing all or part of a building, components, building materials, and/or infrastructure and facilities.
 9. The owner of a building is a person, legal entity, group of people or association, who according to law is legally the owner of the building.
 10. Building users are building owners and/or non-building owners based on an agreement with the building owner, who use and/or manage the building or part of the building in accordance with the designated function.



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11. Reviewer...

11. A technical assessor is an individual or legal entity who has a certificate of expertise to carry out technical assessments of the functional suitability of a building in accordance with applicable statutory provisions.

12. The community is an individual, group, legal entity or business, and institution or organization whose activities are in the field of building construction, including customary law communities and expert communities, who have an interest in the organization of building construction.

13. Building infrastructure and facilities are complete facilities inside and outside the building that support the fulfillment of the building's function.

14. The Central Government, hereinafter referred to as the Government, is the apparatus of the Unitary State of the Republic of Indonesia which consists of the President and ministers.

15. The Regional Government is the head of the district or city along with other autonomous regional apparatus as the regional executive body, except for the Special Capital Region of Jakarta Province, which is the governor.

CHAPTER II

PRINCIPLES, OBJECTIVES, AND SCOPE

Article 2

Building construction is carried out based on the principles of utility, safety, balance and harmony of the building with its environment.

Article 3

The purpose of building regulations is to: 1. create functional buildings that comply with building regulations that are harmonious and in harmony with their environment; 2. create orderly building management that guarantees the technical reliability of buildings in terms of safety, health, comfort and convenience; 3. create legal certainty in building management.

building.

Article 4

This law regulates provisions regarding building structures, including functions, requirements, administration, community roles and guidance.



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CHAPTER III...

CHAPTER III BUILDING FUNCTIONS

Article 5

- (1) The functions of a building include residential, religious, business, social and cultural functions, as well as special functions.
- (2) Residential buildings as referred to in paragraph (1) include buildings for single-family homes, terraced houses, flats and temporary housing.
- (3) Buildings for religious purposes as referred to in paragraph (1) include mosques, churches, temples, monasteries and Chinese temples.
- (4) Business function buildings as referred to in paragraph (1) include buildings for offices, trade, industry, hotels, tourism and recreation, terminals and storage.
- (5) Buildings with social and cultural functions as referred to in paragraph (1) include buildings for education, culture, health services, laboratories and services.

general.
- (6) Special function buildings as referred to in paragraph (1) include buildings for nuclear reactors, defense and security installations, and similar buildings as decided by the minister.
- (7) One building can have more than one function.

Article 6

- (1) The function of the building as referred to in Article 5 must be in accordance with the location designation as regulated in the Regional Regulation concerning District/City Spatial Planning.
- (2) The function of the building as referred to in paragraph (1) is determined by the Regional Government and stated in the building permit.
- (3) Changes to the function of a building that have been determined as referred to in paragraph (2) must obtain approval and be re-determined by the Regional Government.
- (4) Provisions regarding the procedures for determining and changing the function of a building as referred to in paragraph (3) are further regulated by Government Regulation.



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CHAPTER IV...

CHAPTER IV
BUILDING REQUIREMENTS

Part One
General

Article 7

- (1) Every building must meet administrative and technical requirements according to the function of the building.
- (2) The administrative requirements for building construction as referred to in paragraph (1) include requirements for land rights status, building ownership status, and building permits.
- (3) The technical requirements for building structures as referred to in paragraph (1) include building layout requirements and building reliability requirements.
- (4) The use of space above and/or below ground and/or water for building construction must have a use permit in accordance with applicable provisions.
- (5) Administrative and technical requirements for traditional buildings, semi-permanent buildings, emergency buildings and buildings constructed in disaster areas are determined by the Regional Government according to local social and cultural conditions.

Part Two

Administrative Requirements for Building Construction

Article 8

- (1) Every building must meet administrative requirements which include: a. land rights status and/or utilization permit from the land rights holder; b. building ownership status; and c. building construction permit in accordance with the provisions of regulations. applicable laws and regulations.
- (2) Every person or legal entity may own a building or part of a building.
- (3) The Regional Government is obliged to record building records for the purposes of orderly development and utilization.
- (4) Provisions regarding building permits, ownership and building data collection as referred to in paragraph (1), paragraph (2) and paragraph (3) are further regulated by Government Regulation.



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Part...

Part Three Building Layout Requirements

Paragraph 1 General

Article 9

- (1) The building layout requirements as referred to in Article 7 paragraph (3) include requirements for the designation and intensity of the building, building architecture, and environmental impact control requirements.
- (2) The building layout requirements as referred to in paragraph (1) are further stipulated in the building and environmental layout plan by the Regional Government.
- (3) Provisions regarding the procedures for preparing building and environmental plans as referred to in paragraph (2) are further regulated by Government Regulation.

Paragraph 2 Allocation Requirements and Building Intensity

Article 10

- (1) The requirements for the designation and intensity of building construction as referred to in Article 9 paragraph (1) include requirements for the designation of the location, density, height and building clearance determined for the location in question.
- (2) The Regional Government is obliged to provide and give open information about the requirements for the designation and intensity of building construction for the community who need it.

Article 11

- (1) The requirements for location allocation as referred to in Article 10 paragraph (1) are implemented based on provisions regarding spatial planning.
- (2) Buildings constructed above and/or below ground, water and/or public infrastructure and facilities must not disrupt environmental balance, the protective function of the area and/or the function of the public infrastructure and facilities concerned.
- (3) Provisions regarding the construction of buildings as referred to in paragraph (2) are further regulated by Government Regulation.



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Article 12...

Article 12

- (1) The building density and height requirements as referred to in Article 10 paragraph (1) include the building base coefficient, building floor coefficient and building height in accordance with the provisions stipulated for the location in question.
- (2) Requirements for the maximum number of floors in a building or part of a building constructed below ground level must take into account the required safety, health and environmental carrying capacity.
- (3) Building structures must not exceed the maximum density and height provisions set for the location in question.
- (4) Provisions regarding the procedures for calculating and determining density and height as referred to in paragraph (3) are further regulated by Government Regulation.

Article 13

- (1) The requirements for building clearance as referred to in Article 10 paragraph (1) include: a. the boundary line of the building with the road axis, river bank, beach edge, railway line, and/or high voltage network; b. the distance between the building and the plot boundaries, and the distance between the road axis and the yard fence permitted at the location in question.
- (2) Requirements for the clearance of buildings or parts of buildings constructed below ground level must take into account location boundaries, security and not interfere with utility functions and the implementation of construction.
city,
- (3) Provisions regarding building clearance requirements as referred to in paragraph (2) are further regulated by Government Regulation.



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Paragraph 3...

Paragraph 3
Building Architectural Requirements

Article 14

- (1) The architectural requirements for buildings as referred to in Article 9 paragraph (1) include requirements for the appearance of the building, interior layout, balance, harmony and compatibility of the building with its environment, as well as consideration of the balance between local socio-cultural values and the application of various architectural and engineering developments.
- (2) The requirements for the appearance of buildings as referred to in paragraph (1) must take into account the form and characteristics of the architecture and the surrounding environment.
- (3) The spatial planning requirements in buildings as referred to in paragraph (1) must take into account the function of the space, the architecture of the building and the reliability of the building.
- (4) The requirements for balance, harmony and compatibility of a building with its environment as referred to in paragraph (1) must take into account the creation of space outside the building, green open space that is balanced, harmonious and in harmony with its environment.
- (5) Provisions regarding the appearance of buildings, interior layout, balance and harmony of buildings with their environment as referred to in paragraph (1), paragraph (2), paragraph (3) and paragraph (4) are further regulated by Government Regulation.

Paragraph 4
Environmental Impact Control Requirements

Article 15

- (1) The application of environmental impact control requirements only applies to buildings that can have a significant impact on the environment.
- (2) The requirements for controlling environmental impacts on buildings as referred to in paragraph (1) are in accordance with the provisions of applicable laws and regulations.



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Part...

Part Four
Building Reliability Requirements
Paragraph 1
General

Article 16

- (1) The requirements for building reliability as referred to in Article 7 paragraph (3) include requirements for safety, health, comfort and convenience.
- (2) The requirements for the reliability of building structures as referred to in paragraph (1) are determined based on the function of the building.

Paragraph 2
Safety Requirements

Article 17

- (1) The building safety requirements as referred to in Article 16 paragraph (1) include requirements for the building's ability to support load, as well as the building's ability to prevent and overcome fire and lightning hazards.
- (2) The requirements for the building's ability to support its load as referred to in paragraph (1) are the ability of the building's structure to be stable and sturdy in supporting the load.
- (3) The requirements for the building's ability to prevent and overcome fire hazards as referred to in paragraph (1) are the building's ability to provide protection against fire hazards through passive and/or active protection systems.
- (4) The requirements for the building's ability to prevent the danger of lightning as referred to in paragraph (1) are the building's ability to provide protection against the danger of lightning through a lightning rod system.

Article 18

- (1) The requirements for the ability of a building structure to be stable and strong in supporting the load as referred to in Article 17 paragraph (2) are the ability of the building structure.



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a stable and sturdy building up to maximum loading conditions in supporting live and dead loads, as well as for certain areas/zones the ability to support loads arising from natural behavior.

(2) The size...

- (2) The size of the load is calculated based on the function of the building under maximum loading conditions and load variations so that if a collapse occurs, building users can still save themselves.
- (3) Provisions regarding loading, resistance to earthquakes and/or wind as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.

Article 19

- (1) Protection against fire hazards is carried out using a passive protection system as referred to in Article 17 paragraph (3) which includes the stability of the structure and its elements, fire-resistant construction, compartmentalization and separation, as well as protection of existing openings to restrain and limit the speed of the spread of fire and smoke.
- (2) Protection against fire hazards is carried out using an active protection system as referred to in Article 17 paragraph (3) which includes the equipment's ability to detect and extinguish fires, control smoke and fire rescue facilities.
- (3) Buildings, other than residential houses, must be equipped with passive and active protection systems.
- (4) Provisions regarding fire safety systems as referred to in paragraph (1), paragraph (2), and paragraph (3) are further regulated by Government Regulation.

Article 20

- (1) Protection against the dangers of lightning through a lightning rod system as referred to in Article 17 paragraph (4) is the ability of a building to protect all parts of the building, including the people inside, from the dangers of lightning strikes.
- (2) The lightning protection system as referred to in paragraph (1) is a lightning protection installation that must be installed on every building which, due to its location, geographical characteristics, shape and use, has a risk of being struck by lightning.
- (3) Provisions regarding the lightning protection system as referred to in paragraph (2) are further regulated by Government Regulation.



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Paragraph 3...

Paragraph 3
Health Requirements

Article 21

The building health requirements as referred to in Article 16 paragraph (1) include requirements for ventilation systems, lighting, sanitation and use of building materials.

Article 22

- (1) The ventilation system as referred to in Article 21 is the need for circulation and air exchange which must be provided in building structures through openings and/or natural ventilation and/or artificial ventilation.
- (2) Residential buildings, health services, education and other public service buildings must have materials for natural ventilation.
- (3) Provisions regarding the ventilation system as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.

Article 23

- (1) The lighting system as referred to in Article 21 is the lighting requirement that must be provided in a building through natural lighting and/or artificial lighting, including emergency lighting.
- (2) Residential buildings, health services, education and other public service buildings must have openings for natural lighting.
- (3) Provisions regarding the lighting system as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.

Article 24

- (1) The sanitation system as referred to in Article 21 is a sanitation requirement that must be provided inside and outside the building to meet the need for clean water, disposal of dirty water and/or waste water, dirt and rubbish.



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and distribution of rainwater.

- (2) The sanitation system in buildings and their surroundings must be installed so that it is easy to operate and maintain, does not cause harm and does not disturb the environment.

(3) Provisions...

- (3) Provisions regarding the sanitation system as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.

Article 25

- (1) The use of building materials as referred to in Article 21 must be safe for the health of building users and must not have a negative impact on the environment.
- (2) Provisions regarding the use of building materials as referred to in paragraph (1) are further regulated by Government Regulation.

Paragraph 4 Comfort Requirements

Article 26

- (1) The requirements for building comfort as referred to in Article 16 paragraph (1) include comfort for movement and relationships between spaces, indoor air conditions, views, as well as vibration and noise levels.
- (2) The comfort of movement space as referred to in paragraph (1) is the level of comfort obtained from the dimensions of the space and the layout of the space which provides comfort in moving within the room.
- (3) The comfort of the relationship between spaces as referred to in paragraph (1) is the level of comfort obtained from the layout of spaces and circulation between spaces in a building to ensure the function of the building is carried out.
- (4) The comfort of indoor air conditions as referred to in paragraph (1) is the level of comfort obtained from the temperature and humidity in the room to ensure the function of the building.
- (5) The comfort of view as referred to in paragraph (1) is a condition where a person's personal rights in carrying out activities in their building are not disturbed by other buildings in the surrounding area.
- (6) The level of vibration and noise comfort as referred to in paragraph (1) is the level of comfort determined by



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a condition that does not result in users and the function of the building being disturbed by vibrations and/or noise arising from either within the building or its environment.

(7) Provisions...

- (7) Provisions regarding comfort of movement space, inter-room relationships, indoor air condition levels, views, and vibration and noise levels as referred to in paragraph (2), paragraph (3), paragraph (4), paragraph (5), and paragraph (6) are further regulated by Government Regulation.

Paragraph 5 Ease of Use Requirements

Article 27

- (1) The requirements for convenience as referred to in Article 16 paragraph (1) include convenience of access to, from and within the building, as well as the completeness of infrastructure and facilities in utilizing the building.
- (2) Ease of access to, from and within the building as referred to in paragraph (1) includes the availability of facilities and accessibility that are easy, safe and comfortable, including for the disabled and the elderly.
- (3) The completeness of the infrastructure and facilities as referred to in paragraph (1) in buildings for public purposes includes the provision of adequate facilities for prayer rooms, changing rooms, baby rooms, toilets, parking areas, rubbish bins, as well as communication and information facilities.
- (4) Provisions regarding ease of access to, from and within buildings, as well as the completeness of infrastructure and facilities as referred to in paragraph (2) and paragraph (3) are further regulated by Government Regulation.

Article 28

- (1) Ease of horizontal connections between spaces in a building as referred to in Article 27 paragraph (2) is a requirement for the building to provide doors and/or corridors between spaces.
- (2) Provisions regarding the number, size and technical construction of doors and corridors are adjusted to the function of the building's space.
- (3) Provisions regarding the ease of horizontal connections between spaces in a building as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.



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Article 29...

Article 29

- (1) Ease of vertical connections in buildings, including vertical transportation facilities as referred to in Article 27 paragraph (2) in the form of providing stairs, ramps and the like as well as lifts and/or escalators in buildings.
- (2) Multi-storey buildings must provide stairs connecting one floor to another, taking into account the convenience, security, safety and health of users.
- (3) Parking buildings must provide ramps with a certain slope and/or other vertical access facilities taking into account user convenience and safety in accordance with applicable technical standards.
- (4) Buildings with more than 5 (five) floors must be equipped with vertical transportation facilities (lifts) installed according to the needs and function of the building.
- (5) Provisions regarding the ease of vertical connections in building structures as referred to in paragraph (1), paragraph (2), paragraph (3), and paragraph (4) are further regulated by Government Regulation.

Article 30

- (1) Evacuation access in emergency situations as referred to in Article 27 paragraph (2) must be provided in the building, including a hazard warning system for users, emergency exits and evacuation routes in the event of fire and/or other disasters, except for residential buildings.
- (2) Provision of evacuation access as referred to in paragraph (1) must be easily accessible and equipped with clear directions.
- (3) Provisions regarding the provision of evacuation access as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.

Article 31

- (1) Provision of facilities and accessibility for people with disabilities and



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elderly as referred to in Article 27 paragraph (2) is mandatory for all buildings, except residential houses.

- (2) Facilities for people with disabilities and the elderly as referred to in paragraph (1) include the provision of accessibility facilities and other facilities in buildings and their surroundings.

(3) Provisions...

- (3) Provisions regarding the provision of accessibility for people with disabilities and the elderly as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.

Article 32

- (1) The completeness of infrastructure and facilities as referred to in Article 27 paragraph (3) is mandatory for all buildings for public purposes.
- (2) Provisions regarding the completeness of infrastructure and facilities as referred to in paragraph (1) are further regulated by Government regulations

Part Five Requirements for Special Function Buildings

Article 33

Administrative and technical requirements for special function buildings, in addition to having to fulfill the provisions in Part Two, Part Three and Part Four of this Chapter, must also fulfill special administrative and technical requirements issued by the authorized agency.

CHAPTER V

BUILDING CONSTRUCTION MANAGEMENT

Part One General

Article 34

- (1) The organization of building construction includes construction, utilization, preservation and demolition activities.
- (2) In organizing building construction as referred to in paragraph (1), the organizer is obliged to fulfill the building requirements as referred to in Chapter IV of this law.
- (3) The building organizer consists of the building owner.



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- buildings, construction service providers, and building users.
- (4) Building owners who are unable to fulfill the requirements as referred to in Chapter IV of this law must still fulfill these provisions in stages.

Part...

Part Two Development

Article 35

- (1) Building construction is carried out through planning and implementation stages along with supervision.
- (2) Construction of buildings can be carried out either on land owned by oneself or on land owned by another party.
- (3) Construction of a building on land belonging to another party as referred to in paragraph (2) is carried out based on a written agreement between the land owner and the building owner.
- (4) Construction of a building may be carried out after the technical plan for the building has been approved by the Regional Government in the form of a building permit, except for special function buildings.

Article 36

- (1) Approval of technical plans for buildings for public interest is determined by the Regional Government after receiving technical considerations from a team of experts.
- (2) Approval of the technical plan for a special function building is determined by the government after receiving technical considerations from a team of experts.
- (3) The membership of the building expert team as referred to in paragraph (1) and paragraph (2) is ad hoc and consists of experts required according to the complexity of the building.
- (4) Provisions regarding the procedures for approving technical plans for building structures as referred to in paragraph (1) and paragraph (2) and the membership of the building expert team as referred to in paragraph (3) are further regulated by Government Regulation.

Part Three Utilization

Article 37



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- (1) Utilization of a building is carried out by the owner or user of the building after the building has been declared to meet the functional suitability requirements.
- (2) A building is declared to meet the functional suitability requirements if it meets the technical requirements, as referred to in Chapter IV of this law.

(3) Maintenance

- (3) Regular maintenance, care and inspection of buildings must be carried out to ensure they continue to meet functional suitability requirements.
- (4) In utilizing a building, the owner or user of the building has the rights and obligations as regulated in this law.
- (5) Provisions regarding procedures for maintenance, care and periodic inspection of buildings as referred to in paragraph (3) are further regulated by Government Regulation.

Part Four
Preservation

Article 38

- (1) Buildings and their surroundings which are designated as cultural heritage in accordance with statutory regulations must be protected and preserved.
- (2) The determination of buildings and their surroundings which are protected and preserved as referred to in paragraph (1) is carried out by the Regional Government and/or the Government by taking into account statutory provisions.
- (3) The implementation of repairs, restoration, protection and maintenance of buildings and their surroundings as referred to in paragraph (1) may only be carried out as long as it does not change the value and/or character of the cultural heritage they contain.
- (4) Repairs, restoration and utilization of cultural heritage buildings and environments that are carried out in violation of the provisions on the function and/or character of cultural heritage must be returned in accordance with statutory regulations.
- (5) Provisions regarding protection and preservation as referred to in paragraph (1) and paragraph (2) and the technical implementation of repairs, restoration and utilization as referred to in paragraph (3) and paragraph (4) are further regulated by Government Regulation.



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Part Five Demolition

Article 39

- (1) Buildings can be demolished if:
 - a. not functional and cannot be repaired;
 - b. can...
 - b. can cause danger in the use of the building and/or its environment;
 - c. does not have a building permit.
- (2) Buildings that can be demolished as referred to in paragraph (1) letters a and b are determined by the Regional Government based on the results of a technical assessment.
- (3) Technical assessments of building structures as referred to in paragraph (2), except for residential houses, are carried out by technical assessors and their procurement is the responsibility of the building owner.
- (4) Demolition of buildings that have a broad impact on public safety and the environment must be carried out based on a technical demolition plan that has been approved by the Regional Government.
- (5) Provisions regarding procedures for demolishing buildings as referred to in paragraph (1), paragraph (2), paragraph (3), and paragraph (4) are further regulated by Government Regulation.

Part Six Rights and Obligations of Building Owners and Users

Article 40

- (1) In the management of building construction, building owners have the right:
 - a. to obtain approval from the Regional Government for the technical plan for the building that has fulfilled the requirements;
 - b. to carry out the construction of the building in accordance with the permits that have been determined by the Regional Government;
 - c. to obtain a letter of determination for the building and/or environment that is protected and preserved from the Regional Government;
 - d. to obtain in accordance with statutory regulations from the Regional Government because the building is determined as a building that must be protected and preserved;



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- e. change the function of a building after obtaining written permission from the Regional Government; f. receive compensation in accordance with statutory regulations if the building is demolished by the Regional Government or another party through no fault of his/her own.

(2) In the management of building construction, the building owner has the following obligations: a. to provide a technical plan for the building which meets the requirements set out in accordance with its function;

b. have...

- b. have a building permit (IMB); c. carry out the construction of the building in accordance with the approved technical plan and be carried out within the validity period of the building permit;
- d. request approval from the Regional Government for changes to the technical plans for the building that occur during the construction implementation stage.

Article 41

- (1) In the management of building construction, owners and users building construction has the right:
- a. to know the procedures/processes for organizing building construction
 - b. to obtain information about the location designation and building intensity at the location and/or space where the building will be built;
 - c. obtain information about the requirements for building reliability;
 - d. obtain information about building regulations which is fit for function;
 - e. obtain information about buildings and/or environments that must be protected and preserved.
- (2) In the management of building construction, building owners and users have the following obligations: a. to utilize the building in accordance with its function; b. to maintain and/or care for the building periodically; c. to complete guidelines/instructions for the implementation of the use and maintenance of the building; d. to carry out periodic inspections of the functional suitability of the building. e. to repair buildings that have been determined to be unsuitable.
- f. demolishing a building that has been determined to be unfit for use and cannot be repaired, may cause danger in its use, or does not have a building permit



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buildings, without disturbing safety and order
general.

CHAPTER VI ROLE OF SOCIETY

Article 42

- (1) The role of the community in the management of building construction can: a. monitor and maintain order in management;
- b. provide... b.
provide input to the Government and/or Regional Government in improving regulations, guidelines and technical standards in the field of building construction;
- c. submitting opinions and considerations to the authorized agency regarding the preparation of building and environmental planning plans, technical plans for certain building structures, and implementation activities that have a significant impact on the environment; d. carrying out class action lawsuits against buildings that disturb, harm, and/or endanger the public interest.
- (2) Provisions regarding the role of the community as referred to in paragraph (1) are further regulated by Government Regulation.

CHAPTER VII GUIDANCE

Article 43

- (1) The government organizes national building development to improve compliance with requirements and orderly building management.
- (2) The Regional Government shall carry out guidance on the management of building construction as referred to in paragraph (1) in the region.
- (3) Some of the organization and implementation of guidance as referred to in paragraph (1) and paragraph (2) is carried out together with the community related to building construction.
- (4) The Regional Government and the community in carrying out the development as referred to in paragraph (2) and paragraph (3) shall empower communities that are not yet able to fulfill the requirements as referred to in Chapter IV.
- (5) Provisions regarding the development of building structures as referred to in paragraph (1), paragraph (2), paragraph (3), and paragraph (4) are regulated further.



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continued with Government Regulation.

CHAPTER VIII
SANCTIONS

Article 44

Every owner and/or user who does not fulfill the obligation to fulfill the function, and/or requirements, and/or management of the building as referred to in this law will be subject to administrative sanctions and/or criminal sanctions.

Article 45...

Article 45

- (1) Administrative sanctions as referred to in Article 44 may be
in the
form of: a. written
warning, b. limitation of construction
activities, c. temporary or permanent suspension of construction work, d.
temporary or
permanent suspension of building use
building;
e. freezing of building construction permit; f. revocation
of building construction permit; g. freezing of building
function certificate; h. revocation of building function
certificate; or i. order to demolish a building.
- (2) In addition to the imposition of administrative sanctions as referred to in
paragraph (1), a fine of up to 10% (ten per hundred) of the value of the
building being or having been constructed may be imposed.
- (3) The type of sanctions imposed as referred to in paragraph (1) and paragraph (2) is
determined by the severity of the violation committed.
- (4) Provisions regarding the procedures for imposing sanctions as referred to in
paragraph (1), paragraph (2), and paragraph (3) are further regulated by
Government Regulation.

Article 46

- (1) Every owner and/or user of a building who does not comply with the provisions
of this law shall be subject to a maximum prison sentence of 3 (three) years
and/or a maximum fine of 10% (ten per hundred) of the value of the building,
if this results in loss of property of another person.
- (2) Every owner and/or user of a building who does not



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does not comply with the provisions of this law, shall be subject to a maximum prison sentence of 4 (four) years and/or a maximum fine of 15% (fifteen percent) of the value of the building, if it results in an accident to another person resulting in permanent disability.

- (3) Every owner and/or user of a building who does not comply with the provisions of this law shall be subject to a maximum prison sentence of 5 (five) years and/or a maximum fine of 20% (twenty percent) of the value of the building, if this results in the loss of life of another person.
- (4) In the judicial process for actions as referred to in paragraph (1), paragraph (2) and paragraph (3), the judge shall take into account the considerations of the building expert team.
- (5) Provisions...
- (5) Provisions regarding the procedures for imposing sanctions as referred to in paragraph (1), paragraph (2), and paragraph (3) are further regulated by Government Regulation.

Article 47

- (1) Any person or body who, due to negligence, violates the provisions stipulated in this law, resulting in a building being unfit for function, may be subject to imprisonment and/or a fine.
- (2) The imprisonment and/or fine as referred to in paragraph (1) includes: a. imprisonment for a maximum of 1 (one) year and/or a fine of a maximum of 1% (one per hundred) of the value of the building if it results in loss of another person's property;
- b. imprisonment for a maximum of 2 (two) years and/or a fine of a maximum of 2% (two per hundred) of the value of the building if it results in an accident for another person resulting in a lifelong disability. c. imprisonment for a maximum of 3 (three) years and/or a fine of a maximum of 3% (three per hundred) of the value of the building if it results in the loss of another person's life.
- (3) Provisions regarding the procedures for imposing sanctions as referred to in paragraph (1) and paragraph (2) are further regulated by Government Regulation.

CHAPTER IX TRANSITIONAL PROVISIONS

Article 48



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- (1) Existing laws and regulations regarding building construction which do not conflict with this law shall remain in effect until new implementing regulations are issued based on this law.
- (2) Buildings that have obtained permits issued by the Regional Government before this law comes into effect are declared to still be valid.
- (3) Buildings that have been erected but do not yet have a building permit at the time this law comes into effect must obtain a certificate of functional suitability based on the provisions of this law to obtain a building permit.

CHAPTER X

CHAPTER X

CLOSING

Article 49

This law shall come into effect 1 (one) year from the date of its promulgation.

So that everyone knows, it is ordered that this law be promulgated by placing it in the State Gazette of the Republic of Indonesia.

Ratified in Jakarta on
December 16, 2002

PRESIDENT OF THE REPUBLIC OF INDONESIA,

Signed

MEGAWATI SOEKARNOPUTRI

Promulgated in Jakarta on
December 16, 2002

STATE SECRETARY OF THE REPUBLIC OF INDONESIA,

Signed

BAMBANG KESOWO

STATE GAZETTE OF THE REPUBLIC OF INDONESIA 2002 NUMBER 134



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REPUBLIC OF INDONESIA



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REPUBLIC OF INDONESIA

EXPLANATION
ON
LAW OF THE REPUBLIC OF INDONESIA
NUMBER 28 OF 2002
ABOUT
BUILDING CONSTRUCTION

General

National development to advance general welfare as stated in the 1945 Constitution is essentially the development of the Indonesian people as a whole and the development of all Indonesian society which emphasizes the balance of development, external prosperity and internal satisfaction, in an advanced and socially just Indonesian society based on Pancasila.

Buildings as places where humans carry out their activities have a very strategic role in forming character, realizing productivity and human identity. Therefore, building management needs to be regulated and developed for the continuity and improvement of people's lives and livelihoods, as well as to create buildings that are functional, reliable, authentic, as well as balanced, harmonious and in harmony with their environment.

Buildings are a physical manifestation of the use of space. Therefore, building regulations must adhere to spatial planning regulations in accordance with applicable laws and regulations.

To guarantee legal certainty and order in the management of building construction, every building must meet the administrative and technical requirements for building construction, and must be managed in an orderly manner.

The Law on Buildings regulates the function of buildings, building requirements, building management, including the rights and obligations of building owners and users at each stage of building management, provisions on the role of the community and guidance by the government, sanctions, transitional provisions, and closing provisions.

The overall purpose and objective of these regulations are based on the principles of utility, safety, balance and harmony of buildings with their environment, for the benefit of a humane and just society.

The community is encouraged to be involved and play an active role not only in the construction and utilization of buildings for their own interests, but also in improving the fulfillment of building requirements and the orderly management of buildings in general.



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Embodiment...

The realization of a building is also inseparable from the role of construction service providers, as stipulated in laws and regulations in the field of construction services, whether as planners, implementers, supervisors, or managers of construction, as well as providing development services, including providing technical assessment services for buildings. Therefore, the regulation of these buildings must also go hand in hand with the regulation of construction services in accordance with laws and regulations.

With the enactment of this law, all building construction projects, both construction and utilization, carried out in the territory of the Republic of Indonesia, carried out by the government, private sector, community, and foreign parties, must comply with all provisions contained in the Law on Buildings.

In facing and responding to technological advances, both information and architecture and engineering, there needs to be a balanced application while still considering the socio-cultural values of the local community and the existing architectural and environmental characteristics, especially contextual, traditional, specific and historical values.

The provisions in this law also provide provisions for consideration of the highly diverse social, economic, and cultural conditions of Indonesian society. In this regard, the government continues to encourage, empower, and improve the community's ability to comply with the provisions of this law in stages so that the guarantee of security, safety, and public health in the management of buildings and their environments can be enjoyed by all parties fairly and imbued with the spirit of humanity, togetherness, and mutual assistance, as well as the implementation of good governance.

This law regulates matters of a basic and normative nature, while the implementing provisions will be further regulated by Government Regulations and/or other laws and regulations, including Regional Regulations, while still taking into account the provisions in other laws related to the implementation of this law.

ARTICLE BY ARTICLE

article 1

Quite clear

Article 2

The principle of utility is used as a basis so that buildings can be realized and operated according to their designated functions, and as a container for human activities that fulfill just human values, including aspects of propriety and appropriateness.



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Principle...

The principle of safety is used as a basis for ensuring that buildings meet building requirements, namely technical reliability requirements to guarantee the safety of building owners and users, as well as the surrounding community and environment, in addition to administrative requirements.

The principle of balance is used as a basis so that the existence of sustainable buildings does not disrupt the balance of the ecosystem and environment around the building.

The principle of harmony is used as a basis for the implementation of building construction to create harmony and balance between the building and its surrounding environment.

Article 3

Quite clear

Article 4

In each stage of building construction, consideration must be given to the social and ecological aspects of the building.

The definition of the scope of development includes regulatory, empowerment and supervisory activities.

Article 5

Paragraph (1)

Article (2) is

quite clear

Temporary housing is a residential building that is not permanently occupied, such as dormitories, guest houses, and the like.

Verse (3)

The scope of religious function buildings for mosques includes prayer rooms, and for churches includes chapels.

Verse (4)

The scope of business function buildings is: a. offices, including rented offices; b. trade, such as stalls, shops, markets, and malls; c. industry, such as factories, laboratories, and workshops; d. hotels, such as guesthouses, inns, hostels, motels, and hotels; e. tourism and recreation, such as meeting halls, sports halls, platforms, cinemas and performance halls; f. terminals, such as land transportation terminals, train stations, airports, and seaports; g. storage, such as warehouses, cold storage, and buildings parking.



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Verse (5)...

Verse (5)

Verse (6) is
quite clear

A special function building is a building whose function has a high level of confidentiality for national interests or whose operation may endanger the surrounding community and/or has a high risk of danger, and its determination is made by the minister in charge of building construction based on the proposal of the relevant minister.

Defense installation buildings, for example, forts and/or defense bases (missile installations), naval bases and air bases, as well as ammunition depots.

Security installation buildings such as forensic laboratories and ammunition depots.

Verse (7)

The combination of functions in a building, for example, a combination of residential and business functions, such as a house-shop building, a house-office, an apartment-mall, and a hotel-mall, or a combination of business functions such as an office-shop building and a hotel-mall.

Article 6

Paragraph (1)

Article (2) is
quite clear

The determination of the function of a building by the Regional Government is given in the building construction permit process.

Verse (3)

Every change in the function of a building must be followed by the fulfillment of building requirements for the new function, and must be reprocessed to obtain a new permit from the Regional Government.

Changes in the function of a building include changes to the same function, for example, an office business function becomes a trading business function or a social function of educational services becomes a social function of health services.

Verse (4)

Quite clear

Article 7

Verse (1)

Quite clear



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Verse (2)

Quite clear

Verse (3)...

Verse (3)

Verse (4) is

quite clear

For example, the construction of buildings such as malls, terminals and offices that are built above or below roads or rivers, including those located above or below public spaces.

Permission to use or utilize space is granted by the authorized agency responsible for the provision of public infrastructure and facilities or other facilities on which the building will be constructed above or below.

Verse (5)

Traditional buildings are buildings that are built based on customary rules or traditions of the community according to their culture, for example traditional houses.

Semi-permanent buildings are buildings that are used for designated functions with semi-permanent construction or that can be upgraded to permanent construction.

Emergency buildings are buildings whose function is only used temporarily, with non-permanent construction or a short building life, for example, director's offices and temporary shelter kiosks.

The Regional Government can designate a location as a disaster area and impose a building ban for a certain or unlimited time limit based on safety and security considerations for the public interest or determine special requirements for building procedures if the area has been deemed not to be dangerous.

For buildings damaged by disasters, emergency repairs or the construction of temporary buildings for emergency needs are permitted within a certain time limit for use, and the Regional Government can exempt and/or reduce the licensing requirements while still paying attention to human security, safety and health.

The Regional Government together with the community is obliged to arrange the above buildings to ensure their security, safety and convenience, as well as the harmony and compatibility of the building with the surrounding architecture and environment.



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Article 8...

Article 8

Verse (1)

Letter a

Land rights are rights of ownership over land, manifested in the form of certificates as proof of ownership/possession of the land, such as ownership rights, building use rights (HGB), business use rights (HGU), management rights, and use rights. Land ownership status can be in the form of certificates, girik (land title), pethuk (land title), sales and purchase deeds, and other deeds/proof of ownership.

A utilization permit is in principle an agreement stated in a written agreement between the land rights holder or land owner and the building owner.

Letter b

Building ownership status is proof of building ownership issued by the Regional Government based on the results of building data collection activities.

In the event of a transfer of ownership rights to a building, the new owner is obliged to comply with the provisions stipulated in this law.

Letter c

Building construction permit (IMB) is a letter of proof from the Regional Government that the building owner can construct a building according to the designated function and based on the technical plan for the building that has been approved by the Regional Government.

Verse (2)

What is meant by a person or legal entity in this law includes an individual or legal entity.

Private legal entities include limited liability companies, foundations, other business entities such as CVs, firms and other forms of business, while public legal entities include government agencies/institutions, state-owned companies, regional-owned companies, public corporations, private companies, limited liability companies, and limited liability companies which can also be the owners of buildings or parts of buildings.

Verse (3)

What is meant by Regional Government is the technical agency in the district/ city that has the authority to handle building development.



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building.

Data collection...

Data collection, including building registration, is carried out during the building permit process and periodically, which is intended for the purposes of orderly construction and use of buildings, providing legal certainty regarding the ownership status of buildings, and information systems.

Based on the building data collection, as an implementation of the principle of horizontal separation, the building owner then obtains a certificate of proof of building ownership from the Regional Government.

Article 9

Paragraph (1)

Article (2) is
quite clear

Building and environmental planning is used to control the use of space in an environment/area, to follow up on detailed spatial planning and as a guide for regional design in order to realize the quality of sustainable buildings and environments from the functional, social, economic and environmental aspects of buildings including ecology and visual quality.

The building and environmental layout plan contains building layout requirements consisting of provisions for building and environmental programs, general plans and design guidelines, investment plans, plan control provisions, and implementation control guidelines.

Building and environmental planning is determined by the Regional Government and can be prepared based on partnerships between the Regional Government, the private sector and/or the community according to the level of problems in the environment/area concerned.

Verse (3)

Quite clear

Article 10

Paragraph (1)

Building intensity is a technical provision regarding the density and height of buildings required in a particular location or area, which includes the basic building coefficient (KDB), building floor coefficient (KLB), and the number of building floors.



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The height of a building is the maximum height of a building permitted at a particular location.

Distance...

The building clearance is the area at the front, left and right sides, and behind the building on one plot that may not be built on.

Verse (2)
Quite clear

Article 11

Verse (1)
What is meant by location allocation is a provision in the district/city spatial planning regarding the type of function or combination of building functions that may be built on a particular designated plot/lot/block.

Verse (2)
Buildings may be constructed above or below ground, water, or public infrastructure and facilities such as roads and/or green belts after obtaining permission from the authorities in charge of organizing the relevant infrastructure and facilities, with the consideration that they do not conflict with spatial planning, building and environmental planning, do not disrupt the function of the relevant infrastructure and facilities, and still take into account the harmony of the building with its environment.

Verse (3)
Quite clear

Article 12

Paragraph (1)
What is meant by the basic building coefficient (KDB) is the comparison coefficient between the ground floor area of a building and the area of the plot/plot/block of use.

What is meant by building floor coefficient (KLB) is the comparison coefficient between the total floor area of a building and the area of the plot/plot/block for which it is intended.

Determination of KDB, KLB, and building height at a location is in accordance with spatial planning provisions and is regulated by the Regional Government through the building and environmental planning plan (RTBL).

Verse (2)
Quite clear

Verse (3)



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Quite clear
Verse (4)
Quite clear

Article 13...

Article 13

Verse (1)

What is meant by a boundary line is a line that limits the minimum free distance from the outermost area of a building mass to the boundary of the land under control, between other building masses, river/coast boundaries, railway lines, drainage plans, and/or high voltage electricity networks.

The river bank is the river bank line measured at the time of the highest tide.

The shoreline is the coastline measured at the highest tide and the full moon.

Determination of building boundaries by the Regional Government by considering aspects of security, health, comfort, convenience, as well as balance and harmony with the environment.

Verse (2)

For public facility buildings such as underground transportation facilities, the determination of building clearance is specifically determined by the Regional Government after considering the opinions of experts.

Verse (3)

Quite clear

Article 14

Paragraph (1)

The architectural requirements for buildings are intended to encourage the realization of quality buildings and environments that are able to reflect identity and become role models for their environment, and which can wisely accommodate the noble values of the nation's culture.

Verse (2)

Consideration of the form and characteristics of the architecture and environment surrounding the building is intended to further create environmental quality, such as through harmonization of architectural values and styles, use of materials and colors of the building.

Verse (3)

Quite clear



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Verse (4)

The outer space of a building is created to simultaneously support the fulfillment of safety, health, comfort and convenience requirements for the building, in addition to accommodating activities supporting the function of the building and green areas around the building.

Room...

Green open spaces are created by paying attention to the potential of natural elements that exist on the site, such as lakes, rivers, perennial trees, soil and ground surfaces, and can function for ecological, social, economic and aesthetic purposes.

Verse (4)

Quite clear

Article 15

Verse (1)

What is meant by significant impact is a very fundamental change in an environment caused by an activity.

Buildings that have a significant impact on the environment are buildings that can cause: a. changes in the physical and/or biological characteristics of the environment, which exceed environmental quality standards according to statutory regulations;

b. fundamental changes in environmental components that exceed recognized criteria based on scientific considerations;

c. threatened and/or extinct species that are rare and/or endemic, and/or protected according to statutory regulations or damage to their natural habitat; d. damage or disturbance to protected areas (such as protected forests, nature reserves, national parks, and wildlife sanctuaries) that are designated according to statutory regulations;

e. damage or extinction of historical objects and buildings of high value;

f. changes to areas that have natural beauty value.

tall;

g. the emergence of conflict or controversy with the community and/or government.

Verse (2)

Letter a

The environmental requirements for building structures include requirements for green open spaces in yards, building boundaries, basement footprints, green areas.



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buildings, circulation and parking facilities, signs, and lighting of the exterior spaces of the building.

The letter b...

Letter b

Requirements regarding environmental impacts are guided by the Law on Environmental Management, regarding the obligation of every business and/or activity that causes a large and significant impact on the environment to have an environmental impact analysis to obtain a permit to carry out the business and/or activity.

Letter c

Technical requirements for environmental impact management include technical building requirements, construction implementation requirements, liquid and solid waste disposal, and disaster area management.

Article 16

Paragraph (1)

What is meant by building reliability is the condition of a building that meets the requirements for safety, health, comfort and convenience of the building in accordance with the established functional requirements.

Verse (2)

Quite clear

Article 17

Verse (1)

Article (2) is

quite clear

Article (3) is

quite clear

A passive protection system is a fire protection system in buildings that is based on structural and architectural design so that the building itself is structurally stable for a certain period of time and can inhibit the spread of fire and heat in the event of a fire.

The active protection system in detecting fires is the fire detection and alarm system, while the active protection system in extinguishing fires is the hydrant system, hose reel system, and fire extinguisher system.



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sprinklers, and light fire extinguishers.

Verse (4)

Quite clear

Article 18...

Article 18

Paragraph (1)

The requirements for the ability to support loads other than self-weight, human loads, and cargo loads are also to support loads arising from natural behavior such as earthquakes (tectonic/volcanic) and hurricanes/storms, decreased material strength caused by shrinkage, relaxation, fatigue, and heat differences, as well as the possibility of landslides, floods, and the danger of damage from destructive insects and fungi.

Verse (2)

Load variation is the variation in building load when empty, or partially empty and partially at maximum conditions.

Buildings with more than two floors must be accompanied by structural calculations when preparing the technical plan.

Verse (3)

Quite clear

Article 19

Verse (1)

Fire-resistant construction is a construction whose structural elements are fire-resistant and are able to structurally withstand the load of the load, which is expressed in the fire resistance level (TKA) of the building elements, which includes resistance to carrying loads, fire spread (integrity), and heat spread (insulation).

Compartmentation is the partitioning of a space within a maximum area and/or volume of space according to the building classification and the type of fire-resistant construction being considered. The partition walls that form compartments are intended to localize fire and smoke, or prevent the spread of heat to adjacent spaces.

Separation is vertical separation at the opening of the outer wall, separation by fire-resistant walls, and separation at the elevator shaft.

Openings are holes in walls or utility holes (AC ducting, plumbing, etc.) that must be protected or fitted with stop valves.



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fire/smoke to prevent the spread of fire/smoke to other rooms.

To support the effectiveness of the passive protection system, consideration must be given to the existence of environmental roads that can be used by fire trucks and/or back roads (brandgang) that can be used for evacuation and/or fire extinguishing.

Verse (2)

Quite clear

Verse (3)...

Verse (3)

Single-family homes, especially core-growing homes and simple, healthy homes, are not required to be equipped with passive and active protection systems, but are adjusted based on the capabilities of each building owner and considerations of the safety of the building and its surrounding environment.

Verse (4)

Quite clear

Article 20

Quite clear

Article 21

Quite clear

Article 22

Verse (1)

The ventilation system also takes into account the principles of energy saving in buildings.

Verse (2)

The provisions for openings for natural ventilation in buildings are also adjusted to the height of the building and geographical conditions.

Verse (3)

Quite clear

Article 23

Verse (1)

The lighting system also takes into account the principles of energy saving in building structures.

Artificial lighting is the provision of artificial lighting through electrical installations and/or energy systems in buildings so that people inside can carry out their activities according to the function of the building.

Verse (2)

Quite clear



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Verse (3)

Quite clear

Article 24

Paragraph (1)

Rainwater distribution must be channeled to infiltration wells and/or to the city well network channels in accordance with applicable regulations.

Verse (2)

Quite clear

Verse (3)...

Verse (3)

Quite clear

Article 25

Quite clear

Article 26

Paragraph (1)

Article (2) is
quite clear

Article (3) is
quite clear

Verse (4) is
quite clear

In buildings whose function requires a certain level of comfort, air conditioning can be used to obtain the desired level of temperature and humidity in the room.

Air conditioning is carried out by considering the principles of energy saving in buildings.

Verse (5)

Visual comfort can be achieved through the composition of building mass, design of openings, layout of interior and exterior spaces of buildings, and by utilizing the potential of exterior spaces of buildings, natural or artificial green open spaces, including prevention of glare and light reflection.

Verse (6)

Vibration comfort is a state where vibration levels do not disrupt a person's health or comfort while carrying out their activities. Vibration can be shock, mechanical, or seismic, originating from either inside or outside a building.

Noise comfort is a condition where the noise level does not cause hearing problems, health problems or comfort for a person in carrying out activities.



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Verse (7)

Quite clear

Article 27

Verse (1)

Quite clear

Verse (2)...

Verse (2)

What is meant by accessibility in a building includes entrances, exits, horizontal connections between rooms, vertical connections within the building and vertical transportation facilities, as well as providing evacuation access for building users, including ease of searching for, finding and using first aid equipment in an emergency for residents and especially for people with disabilities, the elderly and pregnant women, especially for public service buildings.

Accessibility must meet function and performance requirements, provisions on distance, dimensions, grouping, number and capacity, as well as provisions on construction.

What is meant by: - easy,

including clarity in reaching the location, given

information and avoid the risk of being trapped; -

comfortable, including through adequate dimensions and conditions; -

safe, including separate fire escapes, sloped floor surfaces, and stairs and landings that have handrails or safety devices.

Verse (3)

The completeness of the building infrastructure and facilities, namely the type, quantity/volume/capacity, is adjusted to the function of the building and the environmental requirements of the building location in accordance with applicable provisions.

Communication and information facilities such as communication systems, guide signs, instructions and other information media.

Verse (4)

Quite clear

Article 28

Quite clear

Article 29

Quite clear



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Article 30

Paragraph (1)

What is meant by other disasters, such as when an earthquake, riot, or other emergency occurs which causes building users to have to be evacuated.

Verse (2)

Article (3) is
quite clear
Quite clear

Article 31...

Article 31

Verse (1)

Single-family homes, particularly core-growing homes and simple, healthy homes, are not required to be equipped with facilities and accessibility for the disabled and elderly.

Residential buildings such as apartments, flats or similar are still required to provide facilities and accessibility for the disabled and elderly.

Verse (2)

Article (3) is
quite clear
Quite clear

Article 32

Quite clear

Article 33

The authorized agency is an agency which, in accordance with the provisions of laws and regulations, is tasked with developing and/or managing buildings with special functions.

Article 34

Paragraph (1)

Supervision activities are inherent in every building management activity.

Verse (2)

Article (3) is
quite clear

Provisions regarding construction service providers comply with statutory regulations regarding construction services.

Verse (4)

The implementation of the stages of fulfillment of the provisions in this law is further regulated by the Regional Government in accordance with the social, cultural and economic conditions of the community.



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Article 35

Verse (1)

Building construction planning is the activity of preparing a technical plan for a building in accordance with the functions and technical requirements specified, as a guideline for implementing and supervising construction.

Implementation...

The implementation of building construction is the activity of establishing, repairing, adding, changing or renovating the construction of a building and/or installations and/or building equipment in accordance with the technical plan that has been prepared.

Supervision of building construction is the activity of supervising the implementation of construction starting from field preparation to the handover of the final work results or building construction management activities.

Verse (2)

Article (3) is

quite clear

What is meant by a written agreement is an authentic deed containing provisions regarding the rights and obligations of each party, the period of validity of the agreement, and other provisions made before an authorized official.

The agreement as referred to above must take into account the function of the building and its form of use, both in whole and in part.

Verse (4)

The technical plan for a building can consist of architectural, structural and construction, mechanical and electrical, landscaping, interior layout technical plans, and is prepared by a certified planning service provider in accordance with statutory regulations, in the form of plan drawings, detailed implementation drawings, work plans and administrative requirements, general requirements and technical requirements, construction budget plans, and planning reports.

Approval of technical plans for building construction in the form of building permits by the Regional Government is based on the principles of administrative and technical feasibility, the principles of excellent service, and good governance.



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Changes to the technical plan for a building that occur during the implementation stage must be made by and/or with the approval of the building's technical planner, and submitted first to the authorized agency for approval.

For special function buildings, the building permit is determined by the Government after coordinating with the Regional Government.

Article 36...

Article 36

Verse (1)

A team of experts is formed based on the capacity and capabilities of the Regional Government to help provide professional advice and considerations on technical plans for buildings for public or specific interests.

Verse (2)

For special function buildings, the technical plans must be considered by a team of relevant experts before being approved by the agency authorized to provide technical guidance for special function buildings.

Verse (3)

The existence of a team of building experts is adjusted to the complexity of the building which requires professional advice and consideration, can include expert communities outside the building discipline as long as necessary, is independent, objective and there is no conflict of interest.

Verse (4)

Quite clear

Article 37

Paragraph (1)

What is meant by functional suitability is the functioning of all or part of the building which can guarantee that building layout requirements are met, as well as safety, health, comfort and convenience requirements for the building in accordance with the designated function.

Verse (2)

A building is declared fit for function if a technical assessment has been carried out on its fulfillment of all technical requirements for the building, and the Regional Government approves it in the form of a certificate of fit for function of the building.



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Verse (3)

Periodic inspections are carried out by building owners through technical assessors as a requirement for obtaining or extending a building's functional suitability certificate.

Verse (4)

Verse (5) is
quite clear
Quite clear

Article 38

Verse (1)

The related legislation is the Law on Cultural Heritage.

Verse (2)...

Verse (2)

Buildings and environments that are protected and preserved can be in the form of a unit or group, or parts thereof, or remains thereof that are at least 50 (fifty) years old, or represent a style period of at least 50 (fifty) years, and are considered to have important historical, scientific and cultural value, including architectural and technological value.

Verse (3)

What is meant by changing is an activity that can damage the cultural heritage value of buildings and/or the environment which must be protected and preserved.

Repairs, restoration and maintenance of buildings and the environment that must be protected and preserved must be carried out with attention to historical value and the authenticity of their form and security so that they can be used according to their original function, or can be used according to other more appropriate development potential based on criteria determined by the Regional Government and/or the Government.

Verse (4)

Verse (5) is
quite clear
Quite clear

Article 39

Verse (1)

Letter a

A building that is no longer functional and cannot be repaired will endanger the safety of the owner and/or user if the building continues to be used.

In the event that a building is declared unfit for use



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but can still be repaired, the owner and/or user are given the opportunity to repair it until it is declared functionally fit.

If the owner is unable to afford it, a residential building that is no longer functional and cannot be repaired, and which endangers the safety of the occupants or the environment, must be vacated. If the building endangers the public interest, the local government can carry out its demolition.

The letter b...

Letter b

What is meant by being able to cause danger is when the use of a building and/or its environment can endanger the safety of the community and the environment.

Letter c

Includes the definition of a building whose designation is not in accordance with the district/city spatial planning plan, so that a building permit cannot be processed.

Verse (2)

The Regional Government determines the status of a building that can be demolished after obtaining the results of a technical assessment of the building that was carried out professionally, independently and objectively.

Verse (3)

Excluded for single-family homes, especially core growing homes and healthy simple homes.

The depth and breadth of the technical assessment level depends greatly on the complexity and function of the building.

Verse (4)

The technical plan for demolition of a building includes plan drawings, detailed drawings, work plans and conditions for carrying out demolition, implementation schedules, and environmental protection plans.

Demolition work using heavy equipment and/or explosives must be carried out by a building demolition service provider who has obtained a certificate in accordance with statutory regulations.

Verse (5)



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Quite clear

Article 40

Verse (1)

Letter a

Approval of technical plans for buildings that meet the requirements is an obligation and responsibility inherent in the Regional Government.

Approval from the Regional Government for technical plans for buildings that meet the requirements is obtained free of charge from the authorized agency.

The letter b...

Letter b

Building construction permits are in the form of building construction permits obtained from the Regional Government quickly and cheaply/affordably after the technical building plan is approved.

The cost of a building permit is affordable and adjusted to the function, ownership and complexity of the building, and is intended to support the financing of licensing services, issuing proof of building ownership and providing technical guidance for building management.

Letter c

The letter of determination for protected and preserved buildings and/or environments is obtained from the Regional Government.
for free.

Letter d

Determination of incentives is carried out based on statutory regulations and/or Regional Regulations.

The letter e

Written permission from the Regional Government in the form of a change in the building construction permit due to a change in the function of the building.

Letter f

Determination of compensation is carried out based on statutory regulations and/or Regional Regulations.

Verse (2)

Quite clear

Article 41

Verse (1)



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Building owners and users can obtain free information on guidelines for procedures, information on requirements and implementation as well as building regulations available from the Regional Government.

Verse (2)

Letter a

It is not permitted to utilize buildings that are not in accordance with the specified function.

Letter b

is quite clear.

Letter c

is quite clear.

The letter d...

Letter d

Periodic inspections of the functional suitability of a building include inspections of the fulfillment of administrative and technical requirements for the building in accordance with its function, with the level of periodic inspections adjusted to the type of construction, mechanical and electrical, and completeness of the building.

Periodic inspections are carried out at certain periods, or due to changes in the function of the building, or due to disasters that have a significant impact on the reliability of the building, such as fires and earthquakes.

Inspections of the functional suitability of a building are carried out by competent technical assessors who have certificates in accordance with statutory regulations, and report to the Regional Government on the results of the inspections they have carried out.

The Regional Government regulates the obligation to carry out periodic inspections, and can randomly carry out inspections of the results of technical assessments carried out by technical assessors.

Letter e

Repairs are carried out on all parts, components or building materials which are declared to be unfit for function based on the results of the inspection carried out by the technical assessor, until they are declared fit for function.

Letter f

Apart from the owner, the user may also be required to demolish the building if the person concerned is bound by an agreement to use the building which is no longer functional.



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Article 42

Verse (1)

Letter a

If there is disorder in the construction, utilization, preservation, and demolition of buildings, the public can submit reports, input, and suggestions to the Regional Government.

Everyone also plays a role in maintaining order and complying with applicable regulations, such as in utilizing the function of building buildings as visitors to shops, cinemas, malls, markets, and users of other public places.

The letter b...

Letter b

What is meant by improvement includes improving Regional Regulations on building construction so that they comply with this law.

Letter c

Expressing opinions and considerations can be done through a team of building construction experts formed by the Regional Government or through dialogue forums and public hearings.

The purpose of conveying this opinion is so that the community concerned can participate in ownership and responsibility for the arrangement of buildings and their environment.

Letter d

Class action lawsuits can be filed in accordance with statutory regulations by individuals or groups of people representing parties who have suffered losses due to the construction of a building that is disruptive, detrimental or dangerous.

Verse (2)

Quite clear

Article 43

Verse (1)

Guidance is carried out within the framework of good governance through regulatory, empowerment, and supervision activities so that every building construction project can take place in an orderly manner and achieve building reliability that is in accordance with its function, as well as the realization of legal certainty. This is carried out by institutionalizing regulations,

legislation, guidelines, instructions, and technical standards.



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building construction up to the regional level and its operationalization in the community.

Empowerment is carried out for building construction organizers and Regional Governments to grow and develop awareness of their rights, obligations and roles in building construction management.

Supervision is carried out through monitoring the implementation of laws and regulations in the building sector and law enforcement efforts.

Verse (2)

The implementation of guidance by the Regional Government is guided by laws and regulations regarding guidance and supervision of regional government.

Verse (3)...

Verse (3)

Communities related to building construction, such as expert communities, professional associations, company associations, communities of building owners and users, and government officials.

Verse (4)

Empowering underprivileged communities is intended to foster compliance with building regulations through internalization, socialization and institutionalization efforts at the community level.

Article 44

The imposition of sanctions does not mean that building owners and/or users are freed from their obligation to comply with the provisions stipulated in this law.

What is meant by administrative sanctions are sanctions given by the administrator (government) to the owner and/or user of a building without going through a judicial process due to failure to fulfill the provisions of this law.

Administrative sanctions include several types, the imposition of which depends on the level of error committed by the building owner and/or user.

What is meant by the value of a building in the provisions of sanctions is the total value of a building at the time it is being built for those in the construction process, or the total value of a building determined at the time the sanction is imposed for a building that has already been built.

Article 45



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Verse (1)

This administrative sanction is alternative in nature.

Letter a

Quite clear

Letter b

It is quite clear

that

Letter c Temporary or permanent suspension of construction work is a letter of order to stop construction work up to the sealing of the building.

Letter d

Temporary or permanent suspension of the use of a building is a letter of order to stop the use up to the sealing of the building.

The letter

e is quite clear

The letter f...

Letter f

is quite clear.

Letter g

is quite clear.

Letter h

is quite clear.

Letter i

The demolition is carried out and is the responsibility of the building owner.

Verse (2)

Quite clear

Verse (3)

Quite clear

Verse (4)

Quite clear

Article 46

Paragraph (1)

Article (2) is

quite clear

Article (3) is

quite clear

Verse (4) is

quite clear

To assist the judicial process and maintain objectivity and the value of justice, the judge in deciding the case regarding the violation must first obtain consideration from a team of experts in the field of building construction.



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Article 47

Quite clear

Article 48

Verse (1)

Article (2) is

quite clear

Buildings that have had a building permit before this law was enacted must still be periodically assessed for their functional suitability in accordance with the provisions of this law.

Buildings that have had a building permit before this law was passed must also be registered along with the periodic building data collection activities carried out by the Regional Government, or based on the community's own initiative.

Verse (3)...

Verse (3)

Buildings that do not have a building permit at the time and after the enactment of this law are required to apply for a building permit through a building suitability assessment and obtain a certificate of suitability.

The assessment of the functional suitability of a building is carried out by a technical assessor and can be carried out in stages according to the social, economic and cultural conditions of the community based on the determination by the Regional Government.

In the event that there is no technical reviewer, the technical review will be carried out by the Regional Government.

The Regional Government is obliged to provide guidance and provide convenience and good services to the community who will process building permits or certificates of building suitability.

Article 49

Quite clear